

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400510	CASTRO VS CASTRO	MOTION TO SET ASIDE COURT ORDERS OF JUNE 5, 2026 PER CCP 473(B) AND RE-SET TRIAL DATE ON COMPLAINT FOR OTHER NON-PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF LISA K. CASTRO BY LISA K. CASTRO

Tentative Ruling:

Plaintiff's UNOPPOSED Motion to Set Aside Dismissal is granted.
Trial is set for 10/2/26.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500477	CAELUS CORPORATION VS ALEJANDRO	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

Defendants' Motion for Leave to Amend its Answer is denied without prejudice.

Defendants' Motion for Leave to File Cross Complaint is granted; Defendants shall have 20 days from this ruling to file its Cross Complaint.

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (CCP §473(a).) Leave to amend is liberally granted. (*Mabie v. Hyatt* (1998) 61 Cal. App. 4th 581, 596.) However, leave to amend may be denied where inexcusable delay and probable prejudice to the opposing party is shown. (*Magpali v. Farmers Group* (1996) 48 Cal. App. 4th 471, 487.)

Pursuant to Cal. Rules of Court, Rule 3.1324(a), a motion to amend a pleading before trial must include a copy of the proposed amended pleading, which must be serially numbered to differentiate it from previous pleadings and must state what allegations are to be added or deleted. (CRC 3.1324(a)(1)-(3).) The motion must also be supported by a separate declaration. The declaration must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and, (4) the reasons why the request for amendment was not made earlier. (CRC, Rule 3.1324(b)(1)-(4).)

There is a strong preference towards granting leave to amend. (*Morgan v. Sup. Ct.* (*Morgan*) (1959) 172 Cal.App.2d 527, 530.) However, leave to amend is not always granted. In *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168,

176, the court found “it would be patently unfair” to allow plaintiff to amend their complaint at the MSJ hearing when the proposed new claim was based on facts that that Plaintiff had known about for five years.

If delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case, even if sought as late as the time of trial. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.)

Ordinarily, the judge will not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. Grounds for demurrer or motion to strike are premature. After leave to amend is granted, the opposing party will have the opportunity to attack the validity of the amended pleading. (See *Kittredge Sports Co. v. Superior Court (Marker, U.S.A.)* (1989) 213 Cal.App.3d 1045, 1048.) However, the court has discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action or defense. Such denial is most appropriate where the pleading is deficient as a matter of law and the defect could not be cured by further appropriate amendment. (See *California Cas. Gen. Ins. Co. v. Sup. Ct. (Gorgei)* (1985) 172 Cal.App.3d 274, 280-281; 821.)

Attorney Mahyar Ghassemian’s declaration that accompanies the motion cursory addressed the required topics of CRC, Rule 3.1324(b)(1)-(4). Attorney Ghassemian’s statements are conclusory and do not include any specific information. For example, Attorney Ghassemian states “[f]acts giving rise to the amended affirmative defenses and factual allegations were newly discovered after Alejandro’s retaining of its counsel of record, and Alejandro has sought this amended filing as soon as practicable following the discovery of the additional affirmative defenses and facts.” (¶16.) Attorney Ghassemian does not explain what additional facts were discovered. Instead, the declaration indicates simply that Defendants were unrepresented at the time the Answer was filed and now that they are represented they would like an opportunity to file a more robust Answer. This does not demonstrate new information was discovered. Additionally, Defendants do not adequately explain why the instant motion was not brought until May 2026. Defendants retained counsel in November of 2025. Then counsel waited six months to even address the issue of amending the Answer with opposing counsel. (Ghassemian Decl. ¶12.) As Plaintiff notes, trial is less than six months away. It is not clear why Defendants waited so long after retaining counsel to address the significant issue of their pleadings.

Leave to amend is liberally granted. However, given the conclusory nature of Attorney Ghassemian’s declaration and the failure to provide any specifics as to when the facts giving rise to the amendment were discovered or why the motion was not brought sooner have not been shown.

LEAVE TO FILE CROSS COMPLAINT

Under Cal. Code Civ. Pro. §426.50, “[a] motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is

demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.” (*Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99.) Section 426.50 allows the court some modicum of discretion to deny leave to file a cross-complaint in determining whether a defendant acted in good faith. (*Ibid.*) An unexplained delay close to the time of trial may be evidence of a lack of good faith, especially where other factors suggest that they delay was for strategic purposes. (*Gherman v. Colburn* (1977) 72 Cal. App. 3d 544, 559-560.)

Here, there is no evidence of bad faith. At most there is evidence Defendant’s counsel unreasonably delayed bringing the instant motion. As noted, the motion to file a Cross Complaint should only be denied where there is evidence of bad faith.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502346	JONES VS BANNING UNIFIED SCHOOL DISTRICT	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT FOR OTHER EMPLOYMENT (OVER \$35,000) OF EUGENIA JONES BY BANNING UNIFIED SCHOOL DISTRICT

Tentative Ruling:

Defendant Banning Unified School District’ Motion for Judgment on the Pleadings is granted.

A defendant’s motion for judgment on the pleadings may be made on the grounds that the court lacks jurisdiction, or that the complaint does not state facts sufficient. (Code Civ. Proc., § 438(c)(1)(B).) A motion for judgment on the pleadings may be made after entry of a pretrial conference order, or 30 days before the initial trial date, whichever is later. (*Id.* at § 438(e).)

A motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061.) The grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice. (*Id.*)

Government Claims Act

Under the Government Claims Act (the “Act”), a plaintiff bringing suit for monetary damages against a public entity or employees must first present a claim to the public entity (“government claim”) which must be acted upon or deemed rejected by the public entity. (Gov. Code §§ 945.4, 950.2, 950.6(a).) It is an element of a cause of action against a public entity. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 374.) The purpose is to provide sufficient information to the public entity to enable it to